

STANDARD OPERATING PROCEDURE

Running Evidante

How a firm, its professionals and its clients use Evidante, how the owner runs it day to day, and the questions to put to the lawyer, the R&D tax adviser and the US CPA before launch.

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NOTE

Screens, buttons and wording below match the live site on the date in the footer. If a screen changes, update this document in the same week.

PART A

What Evidante is, and the rule that never bends

Evidante records engineering activity (commits, pull requests, tickets, discussions, builds) from the tools a client already uses, as it happens. Each record is dated, fingerprinted and linked to the one before it, so any later change is detectable. Records are organised by client, project and date. The professional records a baseline and a decision for each project, and the firm produces a Defence Pack that anyone can check at evidante.com/verify.

THE BOUNDARY

Evidante never decides whether work qualifies, never scores or grades evidence, never gives tax or legal advice, and never prepares or files a claim. The professional decides; the firm prepares and files. Every screen, email, pack and conversation must stay on this side of the line. If a customer asks “does this qualify?”, the answer is always: “That is your professional’s decision. Evidante shows them the records.”

Term	Meaning
Client access key	The 12-word key the client signs in with. It is their only way in and cannot be recovered. Never write it in an email to anyone except the client, and never paste it into a ticket or chat.
Client reference (EV-XXXX-XXXX-XXXX)	A public, one-way reference printed on packs. Used at /verify. Safe to share.
Professional	UK: the Competent Professional, the client’s technical expert in the field (often the CTO), not the accountant. US: the reviewing professional.
Baseline	The professional’s record of what was known at the start of a project. The AIF asks for it.
Defence Pack	The PDF of every record, the professional’s baseline and decisions, and the integrity details.

PART B

Firm: running one client from start to Defence Pack

Sign in at evidante.com/partner/login. The portal has five tabs: Clients, Review, Defence Packs, Connections and Settings. The Menu (top right) has help, the public pages and Sign out.

B1. One-off firm set-up

1. **Settings:** set up billing. There is a 14-day free trial. A client cannot be activated until billing is set up.
2. Use the **UK / US** switch at the top to choose which country’s clients you see. It follows you into the portal.

B2. Add the client

3. **Clients → Add client.** Enter the company name and country (United Kingdom (HMRC) or United States (IRS)). **The country cannot be changed later;** to change it you must delete and re-add the client.
4. Enter the client contact email. Their access details are emailed there.
5. Enter the claim period with **exact dates**, for example “1 Apr 2025 to 31 Mar 2026”. Vague text such as “FY 2024-25” is kept but cannot be turned into HMRC deadlines.
6. UK, optional: agent reference, client UTR, SIC code, employer PAYE reference (the AIF asks for these).

7. Save. **Copy the access key shown once** and give it to the client securely (phone or in person, not in the same email as their username). It cannot be recovered.
8. If the client shows “Not active”, press **Activate client** on its page.

WATCH OUT

If the client loses the access key, it cannot be recovered or reset. Tell the client this at hand-over.

B3. Connect the client’s tools

9. The client signs in at **evidante.com/login** with the key, opens **Setup** (“Connect your tools”) and connects GitHub, GitLab, Bitbucket, Jira, Linear, Slack, Microsoft Teams, Azure DevOps or Notion.
10. Before connecting, the client must tell the team whose work will be recorded (the Setup page says so).
11. In the portal, the client page and the **Connections** tab show each connected tool and when it last sent activity.

TIP

Status “Capturing” means activity arrived in the last 14 days. “Not capturing since ...” means check the client’s connections.

B4. Set up projects and the professional

12. On the client page, **Manage projects**: name each R&D project and say where its work happens (repositories, Jira keys, Slack channels, Linear teams). Records from those places appear under the project.
13. **More for this client → Nominate the Competent Professional** (US: reviewing professional): their technical lead in the field, not their accountant.
14. The professional completes the **baseline** for each project before reviewing it (Part C). A project is created automatically when the first baseline is completed if none exists.

B5. Review each project

15. **Review** tab lists projects awaiting a decision. Or on the client page press **View evidence**.
16. The evidence page shows the project’s records day by day. Open any record to see who, when, where and what it says.
17. At the bottom, **Professional review**: choose Include in claim, Exclude from claim or Needs more information, write notes and, optionally, reasons by criterion and cost categories, enter the reviewer’s name and press **Record assessment**. Decisions are recorded, never overwritten; a new decision adds to the history.
18. Optional: **More for this client → Send claim summary sign-off link** emails the professional a single-use link (48 hours) to confirm a project’s claim summary.

B6. UK only: HMRC deadlines and filing

The client page shows an **HMRC deadlines** card worked out from the claim period (use **Change claim period** to correct it). The client’s dashboard has the same steps under **Compliance → Filing steps (CT600)**.

Step	Rule (HMRC guidance)	Who
Claim notification, if needed	First claim, or last claim more than 3 years before the end of the notification period, or HMRC removed the last claim. Deadline: 6 months after the end of the period of account. Missed = claim invalid.	Firm

Step	Rule (HMRC guidance)	Who
Additional information form	Every claim, one per accounting period, before or on the same day as the CT600 (same day: form first). Baseline, advance, uncertainties per project.	Firm, using Evidante's records
CT600	X in box 656 (notification) and box 657 (AIF). Bank details if a credit is paid.	Firm
CT600L	Merged RDEC always; ERS only for a payable credit (periods from 1 Apr 2024).	Firm
PAYE cap	£20,000 + 300% of relevant PAYE and NIC, unless exempt.	Firm
Last date to claim	24 months after the end of the period of account (42 months from its start if over 18 months).	Firm

NOTE

Evidante does not file or prepare the return. These dates assume the claim period is the period of account; check them against the accounts.

B7. Defence Pack and integrity check

19. On the client page press **Create Defence Pack** (or the **Defence Packs** tab). Download the PDF.
20. Read the "Not recorded yet" box on the first page: it lists anything missing, for example no baseline.
21. Anyone can check the pack has not changed at evidante.com/verify using the client reference on page 1. No account is needed.
22. A pack removed from the list can be restored; its entry stays in the client's record so the integrity check keeps working.

B8. If HMRC or the IRS asks questions

- Create a fresh Defence Pack and use the project timelines to answer. HMRC normally asks (CIRD80520): the advance sought, the project, the uncertainties, how it went beyond the state of knowledge, why it was not readily deductible, and when the uncertainties were overcome.
- Point the officer to /verify with the client reference so they can check the records independently.
- Evidante does not correspond with HMRC or the IRS. The firm or its representative does.

B9. Edit, remove or delete

- **Edit client:** change the name and (UK) the exact claim period. Records are not affected.
- **Delete client:** permanent. The records can no longer be opened and are removed from the database. Sealed copies stay in write-once storage, unreadable, until their retention ends (see Part F, lawyer question 1).
- Hidden clients: "Show hidden clients" on the Clients tab brings them back.

PART C

Professional: baseline, review and sign-off

1. The professional receives emails with single-use links. Open each link in the **same browser** each time: the signing key is created and kept in that browser, and Evidante never holds it.
2. **Baseline** (per project, before reviewing): the state of knowledge at the start, the scope, the sources looked at, and why the advance was not readily deducible. Write it in your own words; HMRC's manual says a simple assertion is unlikely to be satisfactory (CIRD81300). The baseline is dated when recorded and cannot be changed.
3. UK: the **GfC3 attestation** records how the claim and its records were prepared.
4. **Review** each project's records and record the decision with reasons (or the firm records it on your behalf, naming you).
5. **Sign off**: confirm the key by the email code, read the exact declaration, and sign. The signature and the declaration text are added to the client's permanent record and can be verified independently.

WATCH OUT

If the professional clears their browser data or changes computer before signing, a new key must be created and confirmed again by email. This is by design: Evidante cannot sign on their behalf.

PART D

Client: connecting tools and keeping the key safe

- Sign in at evidante.com/login with the access key. Store the key in a password manager. It cannot be recovered.
- Tell the engineering team their work activity is recorded (who did what, when), and that source code is never read.
- Connect tools once in **Setup**. Activity then arrives automatically; nobody needs to change how they work.
- Optional: import earlier history from **Records added later**. Imported records are always labelled "Added later", never as records made at the time.
- The client dashboard shows records preserved, the integrity status, and (UK) the filing steps for the claim.

PART E

Owner: running Evidante

E1. Rules that never break

- Never paste secrets (keys, passwords, tokens, client access keys) into chat, email or tickets. Use hidden prompts.
- Never change **WEBHOOK_MASTER_KEY** on Railway: every client's webhook depends on it.
- No production data changes, backfills or migrations without a written go-ahead and a backup.
- Never print any part of a client access key outside the client's own screens and its activation email. Use the EV reference everywhere else.
- No em dashes in any text (CI rejects them).
- Anything that reads as a qualification verdict or tax advice is a bug. Fix it like one.

E2. Daily (5 minutes)

- Read the admin alert emails and Sentry for new errors.
- Read partners@, hello@, support@ and privacy@ (all forward to your inbox). Answer privacy requests within one month.
- GitHub: both repositories' latest commit shows a green check (frontend "typecheck + build + e2e", backend "import-smoke + pytest").

E3. Weekly (20 minutes)

- GitHub → sovereign-frontend → Actions → **deep-audit** → Run workflow. It checks about 210 page views and every link on the live site. Ask Claude to read the results.
- Demo client: if Helix Systems (demo) is older than 7 days before a demo, re-seed it (Demo Guide, section 2.1).
- Supabase: Database → Backups lists a recent daily backup (requires the Pro plan).
- Stripe: failed payments and trials ending.

E4. Releasing a change

1. Changes go to **main**. Vercel deploys the website and Railway deploys the backend automatically.
2. Wait for CI to pass on both repositories, then confirm the Vercel deployment says Ready.
3. After any risky change, run the live end-to-end check (scripts/e2e_live.py, 68 checks, UK and US).
4. If a website deploy fails, the previous version stays live. Fix forward; do not panic.

E5. If something goes wrong

- Follow **docs/ops/INCIDENT_RUNBOOK.md** (security or outage) and **docs/ops/BACKUP_RESTORE_RUNBOOK.md** (data).
- Personal data breach: the controller (the firm) must normally tell the ICO within 72 hours of becoming aware; Evidante, as processor, must tell the firm without undue delay. Write down what happened and when.
- Integrity check fails for a client: stop, do not edit anything, and investigate before telling the firm.

E6. Demos

- Follow the Evidante Demo Guide PDF. Before a demo: hide every client except Helix, set Helix's claim period (Edit client), and check the Review tab shows one project awaiting review.
- Never demo on a real client's data.

E7. Open owner items (see docs/LAUNCH-CHECKLIST.md)

Item	Where
Fix the partners@ forwarder (it forwards to itself); add privacy@	Namecheap → Domain → Redirect Email
Confirm DKIM is Verified for evidante.com	Postmark → Sender Signatures
ADMIN_SECRET_SERVER equals ADMIN_SECRET; admin console lists clients	Vercel and Railway variables
Clear BRAND_FROM_NAME if it is a person's name	Railway variables
Upgrade to Pro and confirm daily backups	Supabase
S3 lifecycle rule for expired locked versions	AWS S3 → bucket → Management
Stripe to live mode, one real charge and refund	Stripe (docs/launch/stripe-live-steps.md)
Lawyer, adviser, CPA and outside tester reviews	Part F and docs/launch/

PART F

Questions for the lawyer, R&D tax adviser and US CPA

MUST = answer before the first paying firm. **SHOULD** = before wider launch. **NICE** = useful. Send each person the matching brief in docs/launch/ with these questions, and ask for answers as: question number, answer, any wording to change (page, current text, new text).

F1. UK lawyer (data protection, contracts, regulatory)

1. **MUST** Retention versus erasure: record files are kept in write-once storage (AWS S3 Object Lock, compliance mode) for 7 years; when a client is deleted they become unreadable at once and are removed from the database, but the sealed copies remain until the 7 years end. Is this compatible with UK GDPR Article 17 and Article 28(3)(g)? Which exemption applies, and is 7 years the right period?
Why we ask: We cannot shorten the lock once written, so the period must be right before launch.
2. **MUST** Terms section 8 says evidence is deleted 90 days after termination, which is not accurate with the 7-year lock. Please approve or edit the replacement wording in docs/launch/lawyer-brief.md.
Why we ask: The live Terms currently promise something the system does not do.
3. **MUST** Roles: is the firm the controller and Evidante the processor for captured records, and Evidante the controller for firm accounts and billing? Is the DPA (docs/legal/dpa-DRAFT.md) adequate for that split?
4. **MUST** Employee monitoring: Evidante records engineers' work activity (who, what, when) at the client company. What lawful basis should the client rely on, do we need a template notice for the client to give its staff, and does the ICO's guidance on monitoring workers require a DPIA from the client or the firm?
Why we ask: Engineers are data subjects but not our customers.
5. **MUST** Regulatory boundary: using the running app, the Defence Pack, the emails and the guides, is there anywhere Evidante appears to give tax advice or act as a tax agent? Do we need professional indemnity insurance, and at what level?
Why we ask: Commercially the most important question: it defines what we can safely say.
6. **MUST** Limitation of liability: if HMRC rejects a claim, or a firm says the pack was incomplete, are our Terms' exclusions and cap enforceable against a business customer (Unfair Contract Terms Act reasonableness)?
7. **SHOULD** Is the product name "Defence Pack", or phrases such as "when HMRC asks, the answer already exists", likely to be read as a promise of a successful defence? Any marketing claim on the home page or guides that is misleading under the Business Protection from Misleading Marketing Regulations 2008?
8. **SHOULD** International transfers: Anthropic, Stripe, Postmark, Sentry and possibly others are US-based. Which mechanism do we rely on (UK Extension to the EU-US Data Privacy Framework, IDTA or UK Addendum), and is the privacy policy wording right?
9. **SHOULD** AI: record text may be sent to Anthropic. Is the sub-processor and no-training wording accurate against Anthropic's commercial terms, and does the firm need to tell its clients?
10. **SHOULD** Electronic signatures: the professional signs a declaration with a key held in their browser. Is that a valid electronic signature for this purpose (Electronic Communications Act 2000, UK eIDAS), and is the declaration text (lib/jurisdictions.ts, cpDeclaration) acceptable?
11. **SHOULD** Approve the Professional Judgment Decline letter template (docs/legal/professional-judgment-decline-DRAFT.md).
12. **SHOULD** Free pilot: do we need a short pilot agreement, or do the Terms cover it?
13. **NICE** Breach notification terms in the DPA: is "without undue delay" enough, or should we commit to a number of hours?
14. **NICE** Trade mark: is "Evidante" clear to use and worth registering in the UK and US?

NOTE

Facts only you can supply, marked {{ }} in the drafts: company number, registered office, ICO registration number, privacy contact, hosting regions of Supabase, Railway and Sentry.

F2. US lawyer (separate, US-qualified)

1. **MUST** Does producing draft Form 6765 figures from numbers the firm enters make Evidante a “tax return preparer” (IRC 7701(a)(36)) or bring it under Circular 230 or any state rules for tax preparers?
Why we ask: The US dashboard computes regular credit, ASC and §280C(c) figures for the preparer to check.
2. **MUST** Which state privacy laws apply at our likely volumes (CCPA/CPRA thresholds, employee and B2B data), and is section 11 of the privacy policy adequate?
3. **MUST** Electronic monitoring notice laws (for example New York, Connecticut, Delaware): must the client give engineers written notice before activity is recorded, and should we supply a template?
4. **SHOULD** Is the professional’s browser-key signature valid under the ESIGN Act and UETA?
5. **SHOULD** Governing law, venue and liability cap for US customers: can the UK Terms apply, or do we need US-specific terms?
6. **SHOULD** Sales tax on SaaS: in which states do we need to register first, given docs/legal/us-sales-tax-note.md?

F3. UK R&D tax adviser (half a day)

1. **MUST** Filing steps and HMRC deadlines (client dashboard → Compliance → Filing steps; portal client page): are the six steps, the order, the CT600 boxes 656 and 657, when CT600L is needed and the PAYE cap correct? Are the notification, return and claim deadlines right, including periods over 12 months?
Why we ask: Firms will rely on these dates.
2. **MUST** Is it acceptable to treat the claim period as the period of account for those dates, with the caveat shown, or should Evidante ask for the period of account separately?
3. **MUST** Read the three UK guides (/resources) and the compliance kit. Is every statement about HMRC accurate and not overstated? Each point links to its source.
4. **MUST** Does any screen, email or the Defence Pack read as Evidante judging eligibility or giving advice?
5. **MUST** Defence Pack: would it help you answer an HMRC compliance check? What would you add, remove or reorder? Is the retrospective disclosure on page 1 worded fairly?
6. **SHOULD** Baseline form: do its fields give you what the AIF asks for (baseline level of science or technology, advance, uncertainties, how they were addressed)? Anything missing?
7. **SHOULD** Review form: are the criteria (advance sought, uncertainty, project boundaries, direct and qualifying indirect activities) and cost categories the right ones under the merged scheme and ERIS?
8. **SHOULD** Including every captured record, including routine work, in the pack: helpful, or a risk you would want firms warned about?
9. **SHOULD** Records imported later are labelled “Added later (retrospective)”. Is that the right treatment and wording?
10. **SHOULD** GfC3 attestation page: does it describe HMRC’s Guidelines for Compliance accurately?
11. **SHOULD** Calculator wording: merged RDEC 15% net at the 25% main rate, 16.2% at 19% or for loss-makers; ERIS up to about 27%. Correct and suitably caveated?
12. **NICE** Is it normal for the client’s CTO to act as the Competent Professional, and should Evidante flag any independence point?
13. **NICE** Would you pay for this, and what price per firm per year feels right?

F4. US CPA (half a day)

1. **MUST** Form 6765 (current revision): are the regular credit, ASC and §280C(c) reduced credit computations correct, and do our labels match the form's sections and lines?
2. **MUST** Section G: is it right that it is optional for 2024 and 2025 and required for tax years beginning after 31 December 2025, with exceptions for a qualified small business making the payroll election and for QREs of \$1.5 million or less with gross receipts of \$50 million or less on an original return?
3. **MUST** Contract research at 65% and qualified research consortia at 75% (IRC §41(b)(3)): applied correctly?
4. **MUST** Does any US screen, email or the US pack read as advice or a verdict on the four-part test?
5. **SHOULD** Would our records help substantiate the credit under Treas. Reg. §1.41-4(d), and support a refund claim's required information or an IRS Information Document Request?
6. **SHOULD** §174A (OBBBA, P.L. 119-21): is our statement on immediate expensing of domestic research costs for tax years beginning after 31 December 2024 accurate?
7. **SHOULD** QSB payroll tax election wording and limits: correct?
8. **SHOULD** Same question as the US lawyer: does producing draft Form 6765 figures risk making Evidante a preparer?
9. **NICE** Record retention we should recommend to US clients, and anything to say about state R&D credits.

F5. Outside tester (1 hour)

Use docs/launch/tester-brief.md: a cold run from sign-up to deleting a client, noting every moment of confusion. Final questions: what would stop you buying this, and what did you expect that was missing?